

SFIO Vs Adarsh Buildestate tc.
(CNR No.HRGR-01/007022/2019) (CIS No. COMA No.5/2019)

Present : Sh. Lokender Singh Raghav, Senior Standing Counsel
for complainant, SFIO.
Accused Joydeep Das Gupta, Lovekush Sharma,
Poonam Madan and Avanish Kumar Tyagi in person
with their counsel Sh. Vishal Gupta, Advocate.
Accused Praveen Maheshwari and Rajeev Maheshwari
in person with Sh. Sanjeev Jain, Advocate.

As per the orders dated 12.9.2019 and 13.9.2019, all the above named six accused moved applications for furnishing the bail bonds and surety bonds and a prayer has been made by accused Joydeep Das Gupta, Lovekush Sharma, Poonam Madan, Praveen Maheshwari and Rajeev Maheshwari that the condition of producing the passport be relaxed in view of the fact that all the applicants are working as Senior Executives in various companies and they have to travel time and again without notice and thus the condition will act as impediment in discharge of their duties especially when there is no prima-facie evidence against them to justify their prosecution for any offence whatsoever as is already observed by this court. Heard. During the course of arguments it is undisputed case of the counsel for the complainant, SFIO that so far as all these six accused are concerned, basically it is a case of no evidence against them as already observed by this court while granting bail to them. As such, in these peculiar facts and circumstances, the condition to take their Passport on record alongwith the condition of leaving India without permission is relaxed and recalled. Requisite bonds furnished, accepted and attested.

So far as the accused Avanish Kumar Tyagi is concerned, he has furnished affidavit wherein he states that he do not have any Passport. As such requisite bonds furnished are also accepted and accepted. Papers be tagged with the bail application files and the same be made part of the records. Now all the accused are directed to appear on **3.10.2019**.

17.9.2019
(ashok)

Sd/-
(Ravi Kumar Sondhi)
Sessions Judge, Gurugram
(UID No.HR0026)